

26PR00281 Estate of George F Tise

County: santa-barbara

Division: Decedent's Estate

Department: 2 SM-Cook

Hearing date: 2026-07-28

Motion: Spousal Property Petition

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Tentative Ruling: Estate of George F Tise

Case Number

26PR00281

Case Type

Decedent's Estate

Hearing Date / Time

Tue, 07/28/2026 - 09:00

Nature of Proceedings

Spousal Property Petition

Tentative Ruling

Probate Notes:

The following must be submitted:

Recorded Title. Since “a person may not transfer an estate or interest in property unless that person is the owner of the estate or interest in question or has the legal authority to act on that owner's behalf” (Restatement (Fourth) of Property § 1.1 (2024)), the Court must have evidence of how title is held:

The nemo dat principle is typically expressed in the full Latin phrase “nemo dat quod non habet,” which roughly translates to “one can only transfer what one owns” or, in the negative, “one cannot transfer property that one does not own.” It is sometimes called the “derivation principle” because the transferee's interest derives from the transferor's.

(Id., at cmnt. a. See also (Miller & Starr (2024) 3 Cal. Real Est. § 8:58 (4th ed.) § 8:58 [“It is axiomatic that a deed cannot convey more than is owned by the grantor. If a deed purports to convey property that is not owned by the grantor, it is ineffective to convey the property, and it is a “wild deed” that can have no effect on title of the person who holds real title to the property.”]; and Romero v. Shih (2024) 15 Cal.5th 680, 689 [citing same in Miller & Starr].)

Proposed Order. A proposed order using Judicial Council Form DE-226 must be submitted with relief that matches that requested in the petition. (Local Rule 1724, subd. (b).)

If the documents curing these deficiencies are not processed by 8:00 a.m. on July 24, 2026, it is recommended that the matter be continued to a date to be set by the Court at the hearing, unless the party appears and requests a different date, or submits a request for a different continuance date prior to the hearing. (Local Rule 1721(c)(2)(A-B).) If the matter is continued, documents must be submitted at least 10 days prior to the new hearing date to be considered.

Due to staffing limitations, processing times may be delayed. To assist in processing, attorneys and parties should include the next court date in the “Filing Description” field provided by the electronic service provider. That field is also used for further descriptions of the document being e-filed, so be sure to put the calendar date FIRST in the field – BEFORE any further description of the document being e-filed (e.g.: 06/28/16 For XYZ).

Judges

Judge James F. Rigali

Dept. 2 SM-Cook

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